

23STCV26453 23STCV26453

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Case Number: 23STCV26453 Hearing Date: June 24, 2026 Dept: B

Tentative Ruling

Nething v. University of Southern

California, Case no. 23STCV26453

Hearing date June 24, 2026

Defendant CSC's Motion for Summary

Judgment

Defendant

USC's Motion for Summary Judgment

Plaintiffs

Rebecca and Robert Nething sue defendants University of Southern California

("USC"), Contemporary Services Corp. ("CSC") for premises liability. Defendants

USC and CSC move for summary judgment. Plaintiffs failed to file timely

opposition; the court granted their request to continue the hearing and grant

leave to file opposition. The opposition contained no substantive argument,

only request for relief per Code Civ. Proc. §473, et seq.

Defendants

request judicial notice of ESPN statistics for the 11/8/22 USC v. Washington

State football game showing attendance of 63,204. GRANTED, per Evid. Code

§452(h).

A

motion for summary judgement must be granted if there is no triable issue of

material fact as to each cause of action. Code Civ. Proc. §437c(a), (c); Aguilar

v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843. To obtain summary

judgment, moving party must prove each element of the cause of action. Harris

v. Rudin, Richman & Appel (2002) 95 Cal.App.4th 1332, as modified Mar.

5, 2002. A defendant can do so by showing plaintiff cannot establish one or

more elements of the claim or there is a complete defense to that claim. Aguilar,

supra, at 853. Once moving party meets this burden, the burden shifts to

responding party to show a triable issue of material fact as to that cause of

action or a defense thereto. Harris, supra, at 1337.

Plaintiffs' Opposition and Request for Relief under

Code Civ. Proc. §473 et seq.

Defendants'

motions were filed 11/17/25; defendants filed notices of non-opposition on 5/26/26.

Plaintiffs moved ex parte to continue hearing, citing a calendaring error for their failure to oppose. 5/27/26 Ex Parte App. The court continued the hearing to allow plaintiffs time to substantively oppose, with an opposition deadline of 6/15/26. Plaintiffs' opposition filed 6/15/26 contained no substantive argument, citing Code Civ. Proc. §437c(h) and stating: (1) plaintiffs failed to seek discovery as to duty; (2) plaintiffs failed to identify, locate or depose percipient witnesses as to foreseeability; and (3) seeking 90 days to conduct discovery. See generally, Opp.

This

case was filed on 10/30/23. CSC answered 10/22/24; USC answered 10/25/24. Trial was set for 4/28/25 but continued once by stipulation and once by motion.

3/19/25 Stip.; 1/22/26 Min. Order. These summary judgment motions were filed 11/17/25 and set for hearing 2/25/26. On 1/22/26 the hearings were continued to allow plaintiffs to conduct discovery per Code Civ. Proc. §437c(h). Id. Plaintiffs have had almost two years to conduct discovery, including 7 months since these motions were filed, plus a 90-day continuance per Code Civ. Proc. §437c(h).

Plaintiffs

argue relief is mandatory under Code Civ. Proc. §473(b) as lead counsel Garcia was undergoing medical treatment from March-May 2026. Opp., 1:12; Decl. Garcia para. 3. Counsel asserts the same calendaring error which caused them to miss

the initial opposition deadline caused them to overlook the need to conduct

discovery prior to filing opposition. Id. at para. 6. Counsel substituted

into this matter on 12/4/25 and was unaware prior counsel failed to conduct

significant discovery. Id. at paras. 7-8. Plaintiffs admit “virtually no

discovery necessary to defeat the defendants’ motions” has occurred (Opp.,

2:23-24) and request more time and further relief under Code Civ. Proc.

§473c(h).

The

court granted relief pursuant to plaintiffs’ prior section 473c(h) request. See

12/18/25 Resp.; see also 1/22/26 Min. Order. Plaintiffs are not entitled

to multiple section 473c(h) continuances. There is no indication that

plaintiffs made any attempts at discovery since the prior relief was granted. That

plaintiffs failed to conduct discovery in the 7 months since these motions were

filed is dilatory conduct and a lack of diligence, neither of which entitles

plaintiffs to further relief under section 473c(h).

Nor

are plaintiffs entitled to relief under Code Civ. Proc. §473(b); counsel came

into this matter on 12/4/25 and was present when the court granted the request

to continue hearing on the motions for summary judgment to allow for discovery.

See 1/22/26 Min. Order. Counsel’s health issues did not arise until

March 2026, months after he came into this matter and more than a month after the court granted additional time to conduct further discovery. That counsel failed to investigate the status of discovery before substituting in to the case or in the months prior to his health issues does not demonstrate excusable neglect nor inadvertence, but a lack of diligence; that no discovery was served after the court granted the prior request to continue also shows a lack of diligence. Further, the court granted plaintiffs' request for section 473(b) relief by continuing the hearing again to allow plaintiffs to file opposition after their failure to do so. See 5/29/26 Minute Order.

Plaintiffs

exhausted avenues for relief under Code Civ. Proc. §473 et seq. While the court favors resolving issues on their merits, this does not entitle plaintiffs to multiple continuances where there is a continuing lack of diligence. Counsel's response on 12/18/25 identifies then-outstanding discovery issues. See 12/18/25 Resp. Those seem to be identical to the discovery plaintiffs assert still needs to be completed, including discovering the identity of and deposing percipient witnesses. See Opp. p. 7. Plaintiffs' counsel had three months between coming into this matter and developing health issues, and at least a month prior to those concerns when counsel had knowledge of outstanding discovery that was sought prior to filing oppositions to these motions. Failure to conduct any

discovery seems to be a lack of diligence. There is no basis for further relief

under either section 473(b) or section 473c(h).

Defendant CSC's Motion for Summary Judgment

Plaintiffs

bring causes of action for negligence and negligent hiring against defendant

CSC, which moves for summary judgment on both claims. To prove negligence,

plaintiff must "show[] that the defendant owed the plaintiff a legal duty, that

the defendant breached the duty, and that the breach was a proximate or legal

cause of injuries suffered by the plaintiff." *Ann M. v. Pacific Plaza*

Shopping Center (1993) 6 Cal.4th 666, 673. Generally, there is no duty to

protect a party against a third party; however, where a special relationship

exists, an affirmative duty to protect may arise. See *Brown v. USA*

Taekwondo (2021) 11 Cal. 5th 204, 209. Absent facts showing a special relationship,

no such duty arises. *Id.* at 220-21.

USC

leased and operated the Coliseum on 10/8/22. SSMF 1. The Coliseum hosted over

63,000 for the football game on 10/8/22. SSMF 2; RJN 1. CSC is a crowd

management vendor retained by USC to provide guest services on 10/8/22. SSMF 3.

The incident occurred during halftime when plaintiff exited the women's

restroom and was knocked to the ground when Doe collided with her from behind.

SSMF 6. The incident was captured on surveillance footage, which shows an unidentified, non-party individual pushing Doe, who then collided with plaintiff from behind, causing her to fall to the ground. SSMF 7. The incident occurred over 1-2 seconds. Id. Neither CSC nor USC received complaints regarding issues in the area where the incident occurred, nor about any involved individuals. SSMF 11. Plaintiffs had no interaction with USC or CSC staff or law enforcement regarding the incident. SSMF 12. Defendants learned of the incident after the fact. Id.

Plaintiffs

failed to offer evidence of a prior relationship, or special relationship, between defendants, plaintiffs and/or unidentified third parties. SSMF 11-19. Plaintiffs failed to provide evidence that defendants had advance knowledge of Doe, or the unidentified man who pushed him, prior to the alleged incident. Id.

Plaintiffs failed to proffer evidence of any measures defendants could have taken to prevent the incident. Id.

A

party moving for summary judgment may point to a responding party's factually devoid discovery responses. See Code Civ. Proc. §437(o)(2); see also

Union Bank v. Super. Ct. (1995) 31 Cal.App.4th 573, 590. Plaintiffs'

responses to defendants' discovery requests are factually devoid and provide no

evidence or facts in support of the causes of action against defendants. SSMF

20. Plaintiffs reiterate allegations of the complaint. Id. The failure

to proffer evidence of existence of a special relationship, and therefore duty,

as well as evidence of causation, is sufficient to shift the burden to

plaintiffs to show a triable issue of material fact.

Plaintiffs'

opposition offers no disputed or additional facts; it admits no discovery has

been done, and plaintiffs have no evidence to create a triable issue of fact.

As plaintiffs are not entitled to further section 473 relief, there is no way

to raise a triable issue of fact. The court has no choice but to GRANT summary

judgment in CSC's favor.

Defendant USC's Motion for Summary Judgment

Plaintiffs

bring causes of action against USC for premises liability, negligence and

negligent hiring. The facts and law presented by USC on the second and third

claims are identical to those presented by CSC. Plaintiff's omnibus opposition

is likewise identical. The court adopts its ruling above and GRANTS summary

judgment in USC's favor on the second and third claims for negligence and

negligent hiring and solely addresses the first claim for premises liability.

Premises

liability is rooted in negligence law and based in the same factors. California courts have held the duty owed to patrons at a sporting event does not extend to controlling misconduct of third persons that defendant has no reason to anticipate and no reasonable opportunity to prevent. See *Rogers v. Jones* (1976) 56 Cal.App.3d 348, 351. The undisputed facts show no special relationship between plaintiffs, defendants and Doe. See SSMF 1-19. The undisputed facts show the incident occurred over 1-2 seconds and without warning. SSMF 7. This shifts the burden to plaintiffs to show a duty via a special relationship, as well as foreseeability and causation. As above, plaintiffs failed to produce evidence to show a triable issue of fact. The court must GRANT summary judgment in USC's favor on all issues.